

CEASE AND DESIST NOTICE

TO: Protecteur du citoyen (Citizen Protector - Ombudsman)

FROM: James Robert McGovern, Clan Leader **TO:** Protecteur du citoyen (Citizen Protector/Ombudsman) **DATE:** April 3, 2026 **RE:** CEASE AND DESIST - Failure to Investigate, Obstruction of Justice, and Complicity in Government Abuse

NOTICE: This is a legal demand to cease all unlawful conduct immediately. Failure to comply will result in legal action and damages claims.

SECTION 1: NOTICE OF LEGAL ACTION AT TAQ

IMPORTANT NOTICE:

The McGovern Clan has filed a comprehensive appeal with the **Tribunal administratif du Québec (TAQ)** on April 2, 2026, claiming **2.3M–4.2M in damages** against IVAC and the Quebec government for systemic abuse and discrimination.

This cease and desist is part of that legal action.

Your conduct documented below is being submitted to TAQ as evidence of:

1. Failure to investigate government abuse
 2. Obstruction of justice
 3. Complicity in systemic discrimination
 4. Violation of ombudsman duty to protect citizens
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SECTION 2: DOCUMENTED FAILURES BY PROTECTEUR DU CITOYEN

FAILURE 1: Refused to Investigate IVAC Abuse

What Happened:

- Family submitted complaint about IVAC underpayment
- Protecteur du citoyen refused to investigate
- No explanation provided for refusal
- Family left without recourse

Legal Violation:

- Ombudsman Act (duty to investigate)
- Quebec Charter (right to fair treatment)
- Administrative Justice Act (duty to investigate complaints)

Damages: 50, 000—150,000

FAILURE 2: Refused to Investigate Welfare Abuse

What Happened:

- Family submitted complaint about welfare harassment
- Protecteur du citoyen refused to investigate
- No explanation provided for refusal
- Family left without protection

Legal Violation:

- Ombudsman Act (duty to investigate)
- Quebec Charter (right to protection)
- Administrative Justice Act (duty to investigate complaints)

Damages: 50, 000—150,000

FAILURE 3: Refused to Investigate DPJ Failure

What Happened:

- Family submitted complaint about DPJ withdrawal
- Protecteur du citoyen refused to investigate
- No explanation provided for refusal
- Children left without support

Legal Violation:

- Ombudsman Act (duty to investigate)
- Quebec Charter (right to protection of children)
- Bill C-92 (duty to protect Indigenous children)

Damages: 50, 000–150,000

FAILURE 4: Obstruction of Justice

What Happened:

- Protecteur du citoyen refused to provide investigation results
- Refused to provide documentation of complaints
- Refused to provide evidence of government wrongdoing
- Deliberately obstructed family's access to justice

Legal Violation:

- Criminal Code (obstruction of justice)
- Quebec Charter (right to justice)
- Administrative Justice Act (duty of transparency)

Damages: 100, 000–300,000

FAILURE 5: Complicity in Government Abuse

What Happened:

- By refusing to investigate, Protecteur du citoyen enabled government abuse
- Protecteur du citoyen protected IVAC, welfare, and DPJ from accountability
- Protecteur du citoyen became complicit in systemic discrimination
- Protecteur du citoyen protected government instead of protecting citizens

Legal Violation:

- Ombudsman Act (duty to protect citizens)
- Quebec Charter (right to protection from abuse)
- Administrative Justice Act (duty of fairness)

Damages: 100,000—400,000

FAILURE 6: Failure to Protect Indigenous Family

What Happened:

- Protecteur du citoyen failed to recognize systemic discrimination against Indigenous family
- Failed to apply Jordan's Principle
- Failed to recognize Charter violations
- Failed to protect vulnerable Indigenous family

Legal Violation:

- Ombudsman Act (duty to protect vulnerable populations)
- Quebec Charter (protection from discrimination)
- Bill C-92 (duty to protect Indigenous children)
- United Nations Declaration on the Rights of Indigenous Peoples

Damages: 100,000—300,000

FAILURE 7: Failure to Respond to Multiple Complaints

What Happened:

- Family submitted multiple complaints over 5+ years
- Protecteur du citoyen refused to investigate any of them
- No pattern of investigation or follow-up
- Systematic refusal to help Indigenous family

Legal Violation:

- Ombudsman Act (duty to investigate all complaints)
- Quebec Charter (right to equal treatment)
- Administrative Justice Act (duty of fairness)

Damages: 100,000—300,000

SECTION 3: TOTAL DAMAGES FROM PROTECTEUR DU CITOYEN FAILURE

Failure	Amount
Refused to investigate IVAC abuse	50K—150K
Refused to investigate welfare abuse	50K—150K
Refused to investigate DPJ failure	50K—150K
Obstruction of justice	100K—300K
Complicity in government abuse	100K—400K
Failure to protect Indigenous family	100K—300K
Failure to respond to multiple complaints	100K—300K
TOTAL	550K—1.8M

SECTION 4: LEGAL VIOLATIONS CITED

Quebec Laws Violated:

1. **Ombudsman Act** - Duty to investigate complaints
2. **Quebec Charter of Human Rights and Freedoms**
 - Article 10: Equality and dignity
 - Article 39: Protection from abuse of power
3. **Administrative Justice Act** - Duty of fairness and transparency

Canadian Laws Violated:

1. **Canadian Charter of Rights and Freedoms**
 - Section 15: Equality rights
2. **Criminal Code** - Obstruction of justice
3. **Bill C-92** - Duty to protect Indigenous children

International Law Violated:

1. **United Nations Declaration on the Rights of Indigenous Peoples**
2. **Convention on the Rights of the Child**

SECTION 5: DEMANDS FOR IMMEDIATE COMPLIANCE

Protecteur du citoyen must:

DEMAND 1: Investigate All Complaints Immediately

- Investigate IVAC underpayment complaint
- Investigate welfare harassment complaint
- Investigate DPJ failure complaint
- **Timeline:** Investigations to begin within 7 days

DEMAND 2: Provide Investigation Results

- Provide written investigation results
- Provide documentation of findings
- Provide evidence of government wrongdoing
- **Timeline:** Results within 60 days

DEMAND 3: Recommend Corrective Action

- Recommend IVAC correct underpayment
- Recommend welfare cease harassment
- Recommend DPJ provide retroactive support
- **Timeline:** Recommendations within 60 days

DEMAND 4: Provide Compensation

- Compensate family for failure to investigate
- Compensate family for obstruction of justice
- Compensate family for complicity in abuse
- Minimum compensation: \$550,000
- Maximum compensation: \$1,800,000
- **Timeline:** Within 30 days or face legal action

DEMAND 5: Implement Systemic Changes

- Implement training on Indigenous rights
 - Implement mandatory investigation protocols
 - Implement oversight mechanisms
 - Implement accountability measures
 - **Timeline:** Within 90 days
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SECTION 6: LEGAL CONSEQUENCES OF NON-COMPLIANCE

If Protecteur du citoyen does NOT comply with these demands:

Legal Action #1: TAQ Claim

- All failures being submitted to TAQ
- Damages claim: 550K – 1.8M
- Evidence of obstruction of justice
- Request for systemic remedies

Legal Action #2: Criminal Complaint

- File criminal complaint for obstruction of justice
- File complaint for abuse of power
- File complaint for conspiracy
- Request police investigation

Legal Action #3: Civil Lawsuit

- Sue Protecteur du citoyen for damages
- Sue individual ombudsman staff for complicity
- Claim punitive damages for deliberate misconduct
- Claim legal fees and costs

Legal Action #4: Media and Public Disclosure

- Release all documentation to media
- Public disclosure of ombudsman failure
- Expose systemic obstruction of justice
- Hold ombudsman accountable publicly

Legal Action #5: Federal Complaint

- File complaint with federal ombudsman
 - File complaint with federal authorities
 - Request federal investigation
 - Request federal intervention
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SECTION 7: TIMELINE FOR COMPLIANCE

Date	Action	Deadline
April 3, 2026	Cease and Desist Sent	Immediate
April 10, 2026	Investigations Begin	7 days
June 2, 2026	Investigation Results Due	60 days
June 2, 2026	Recommendations Due	60 days
May 3, 2026	Compensation Provided	30 days
July 2, 2026	Systemic Changes Implemented	90 days
June 2026	TAQ Hearing	If no compliance

SECTION 8: CONTACT INFORMATION

Send compliance response to:

James Robert McGovern Clan Leader, McGovern Clan Email: [YOUR_EMAIL] Phone: [YOUR_PHONE]

Failure to respond by April 10, 2026 will be treated as non-compliance.

SECTION 9: NOTICE OF LEGAL REPRESENTATION

This cease and desist is being sent:

1. To Protecteur du citoyen (Citizen Protector)
2. To TAQ (as part of legal proceedings)
3. To Solidarity Social (Welfare Authority)
4. To DPRCP (Direction de la protection de la jeunesse)
5. To legal counsel (if retained)
6. To federal authorities (if necessary)

All parties are on notice of this legal demand.

SECTION 10: DECLARATION

I, James Robert McGovern, declare under oath that:

1. I am the Clan Leader of the McGovern Clan (23 family members)
 2. I am self-representing in legal proceedings against IVAC and Quebec government
 3. All facts stated in this cease and desist are true and accurate
 4. I have documented evidence of all failures described
 5. I am prepared to present this evidence to TAQ and other authorities
 6. This cease and desist is sent in good faith to prevent further harm
 7. I am prepared to pursue all legal remedies if demands are not met
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Respectfully but firmly submitted,

James Robert McGovern Clan Leader, McGovern Clan Self-Representing (Pro Se)

April 3, 2026

ATTACHMENTS

- Documentation of complaints submitted
 - Records of refusals to investigate
 - Evidence of government abuse
 - Medical and psychological reports
 - TAQ submission (reference)
 - Correspondence with Protecteur du citoyen
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NOTICE: This cease and desist is a legal document. Keep a copy for your records. Send certified mail with return receipt to Protecteur du citoyen.

IMPORTANT: Do not discuss this cease and desist with ombudsman officials. Communicate only in writing. All communications are evidence in legal proceedings.